

**SUBSTITUTE FOR
SENATE BILL NO. 214**

A bill to amend 1984 PA 270, entitled
"Michigan strategic fund act,"
(MCL 125.2001 to 125.2094) by adding sections 9a and 9b.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

Sec. 9a. As used in sections 9b and 9c:

(a) "Strategic advisory board" means the strategic advisory
board created in section 9b.

(b) "Strategic plan" means the strategic plan required under
section 9c(1) and includes an updated strategic plan under section
9c(2) .

**Sec. 9b. (1) The strategic advisory board is created in the
fund.**

(2) The strategic advisory board must consist of the following



1 members:

2 (a) The following voting members:

3 (i) The 4 members elected by the nonvoting members described in
4 subdivision (b) (i) as described under subsection (12).

5 (ii) The 4 members elected by the nonvoting members described
6 in subdivision (b) (ii) as described under subsection (12).

7 (iii) The 4 members elected by the nonvoting members described
8 in subdivision (b) (iii) as described under subsection (12).

9 (iv) The 4 members elected by the nonvoting members described
10 in subdivision (b) (iv) as described under subsection (12).

11 (v) The 4 members elected by the nonvoting members described
12 in subdivision (b) (v) as described under subsection (12).

13 (vi) The 4 members elected by the nonvoting members described
14 in subdivision (b) (vi) as described under subsection (12).

15 (vii) The 4 members elected by the nonvoting members described
16 in subdivision (b) (vii) as described under subsection (12).

17 (viii) The 4 members elected by the nonvoting members described
18 in subdivision (b) (viii) as described under subsection (12).

19 (b) The following, except as otherwise provided in this
20 section, nonvoting members, appointed by the governor:

21 (i) The following nonvoting members with expertise in jobs,
22 talent acquisition, and small business:

23 (A) One representative from Traverse Connect.

24 (B) One representative from Business Leaders for Michigan.

25 (C) One representative from the Detroit Chamber of Commerce.

26 (D) One representative from the Upjohn Institute.

27 (E) One representative from MichBusiness.

28 (F) One representative from the department of labor and



1 economic opportunity.

2 (G) One representative from the Small Business Association of
3 Michigan.

4 (H) One representative from Michigan Works!.

5 (ii) The following nonvoting members with expertise in transit:

6 (A) One representative from Transportation Riders United.

7 (B) One transit representative from the Southeast Michigan
8 Council of Governments.

9 (C) One representative from The Rapid.

10 (D) One representative from the Capital Area Transit
11 Authority.

12 (E) One representative from SMART.

13 (F) One representative from the Detroit department of
14 transportation.

15 (G) One representative from the state transportation
16 department.

17 (H) One representative from the Michigan Transportation Team
18 Coalition.

19 (I) One representative from the Michigan Public Transit
20 Association.

21 (J) One representative from the Regional Transit Authority.

22 (iii) The following nonvoting members with expertise in economic
23 and community development:

24 (A) One representative from the Northeast Michigan Council of
25 Governments.

26 (B) One representative from Lakeshore Advantage.

27 (C) One representative from The Right Place.

28 (D) One representative from Saginaw Future.

29 (E) One representative from Flint and Genesee Economic



1 Alliance.

2 (F) One representative from the Lansing Economic Area
3 Partnership.

4 (G) One representative from the Cornerstone Alliance.

5 (H) One representative from Southwest Michigan First.

6 (I) One representative from the Detroit Economic Growth
7 Corporation.

8 (J) One representative from the Detroit Regional Partnership.

9 (K) One representative from the Michigan Economic Developers
10 Association.

11 (L) One representative from the Northern Lakes Economic
12 Alliance.

13 (M) One representative from the MEDC.

14 (N) One representative from the office of global Michigan.

15 (O) One representative from the Community Economic Development
16 Association of Michigan.

17 (P) One representative from Networks Northwest.

18 (Q) One representative from the Michigan Municipal League.

19 (R) One representative from the Michigan Townships
20 Association.

21 (S) One representative from the Michigan Downtown Association.

22 (T) One representative from the Michigan Black Business
23 Alliance.

24 (iv) The following nonvoting members with expertise in housing
25 or utilities services:

26 (A) One representative from Michigan Future.

27 (B) One representative from Consumers Energy.

28 (C) One representative from DTE Energy.

29 (D) One representative from Macomb County Planning and



1 **Economic Development.**

2 (E) One representative from Oakland County Economic
3 Development.

4 (F) One representative from Wayne County.

5 (G) One representative from the Tribal Government Services and
6 Policy.

7 (H) One representative from Environmental Resource Group.

8 (I) One representative from the Apartment Association of
9 Michigan.

10 (J) One representative from ICCF Community Homes.

11 (K) One representative from the department of health and human
12 services.

13 (L) One representative from the Michigan state housing
14 development authority created in section 21 of the state housing
15 development authority act of 1966, 1966 PA 346, MCL 125.1421.

16 (M) One representative from the Michigan Housing Council.

17 (N) One representative from the Homebuilders Association of
18 Michigan.

19 (v) The following nonvoting members with expertise in
20 education:

21 (A) One individual who represents the Michigan Community
22 College Association.

23 (B) One individual who is an economics expert from Michigan
24 State University.

25 (C) One individual who is an economics expert from the
26 University of Michigan.

27 (D) One representative from the Michigan Education
28 Association.

29 (E) One representative from the Michigan Association for the



1 Education of Young Children.

2 (F) One representative from the Michigan Education Justice
3 Coalition.

4 (G) One representative from Michigan Education Technology
5 Leaders.

6 (H) One representative from the Michigan Education Research
7 Institute.

8 (I) One representative from the Michigan College Access
9 Network.

10 (J) One representative from the department of education.

11 (K) One representative from the department of lifelong
12 education, advancement, and potential.

13 (L) One representative from the Michigan Association of School
14 Boards.

15 (M) One representative from the Michigan Association of State
16 Universities.

17 (N) One representative from Western Michigan University.

18 (O) One representative from Wayne State University.

19 (vi) The following nonvoting members with expertise in rural
20 development:

21 (A) One representative from Invest UP.

22 (B) One representative from the Middle Michigan Development
23 Corporation.

24 (C) One representative from the Rural Partners of Michigan.

25 (D) One representative from the Michigan Rural Community
26 Assistance Program (RCAP).

27 (E) One representative from the department of agriculture and
28 rural development.

29 (F) One representative from the Michigan Rural Development



1 Council.

2 (G) One representative from the department of labor and
3 economic opportunity, office of rural prosperity.

4 (vii) The following nonvoting members with expertise in
5 innovation, technology, or manufacturing:

6 (A) One representative from the Michigan Chamber of Commerce.

7 (B) One representative from the Ann Arbor Spark.

8 (C) One representative from Michigan Central.

9 (D) One representative from Michigan State University Burgess
10 Institute for Entrepreneurship and Innovation.

11 (E) One representative from University of Michigan Center for
12 Innovation.

13 (F) One representative from ID Ventures.

14 (G) One representative from Western Michigan University's
15 Center for Bioscience Research and Commercialization.

16 (H) One representative from the Michigan Manufacturers
17 Association.

18 (I) One representative from Michauto.

19 (J) An innovation report policy representative of the
20 Citizen's Research Council.

21 (viii) The following nonvoting members with expertise in
22 environmental matters:

23 (A) One representative from the Michigan Environmental Justice
24 Coalition.

25 (B) One representative from the Clearwater Conservation
26 Committee.

27 (C) One representative from the Michigan League of
28 Conservation Voters.

29 (D) One representative from the Michigan Organic Farm and Food



1 Alliance.

2 (E) One representative from the UP Land Conservancy.

3 (F) One representative from For the Love of Water (FLOW).

4 (G) One representative from the department of environment,
5 Great Lakes, and energy.

6 (H) One representative from the department of natural
7 resources.

8 (I) One representative from the Michigan Environmental
9 Council.

10 (c) The following nonvoting members, appointed by the
11 governor:

12 (i) Two individuals who are experts on national economics.

13 (ii) Two individuals who are top site-selection consultants.

14 (iii) Two individuals who are each a leader of a national
15 economic development organization focused on policy and practice.

16 (3) The governor shall appoint the first members of the
17 strategic advisory board within 90 days after the effective date of
18 the amendatory act that added this section.

19 (4) The term of a member of the strategic advisory board is 1
20 year or until a successor is appointed under subsection (2),
21 whichever is later, but not to exceed the time period it takes the
22 strategic advisory board to develop the strategic plan in
23 accordance with section 9c.

24 (5) If a vacancy occurs on the strategic advisory board, the
25 governor shall appoint an individual to fill the vacancy for the
26 balance of the term.

27 (6) The governor may remove a member of the strategic advisory
28 board for incompetence, dereliction of duty, malfeasance,
29 misfeasance, or nonfeasance in office, or any other good cause.



1 (7) The individuals appointed under subsection (2)(a) shall
2 call the first meeting of the strategic advisory board. At the
3 first meeting, the voting members of the strategic advisory board
4 shall elect a member as a chairperson and may elect other officers
5 that it considers necessary or appropriate. The strategic advisory
6 board shall meet at least quarterly, or more frequently at the call
7 of the chairperson or at the request of 10 or more members.

8 (8) A majority of the voting members of the strategic advisory
9 board constitute a quorum for transacting business. A vote in favor
10 by a majority of the voting members of the strategic advisory board
11 serving is required for any action of the strategic advisory board.

12 (9) The strategic advisory board shall conduct its business in
13 compliance with the open meetings act, 1976 PA 267, MCL 15.261 to
14 15.275.

15 (10) A writing that is prepared, owned, used, possessed, or
16 retained by the strategic advisory board in performing an official
17 function is subject to the freedom of information act, 1976 PA 442,
18 MCL 15.231 to 15.246.

19 (11) A member of the strategic advisory board is not entitled
20 to compensation for service on the strategic advisory board, but
21 the strategic advisory board may reimburse a member for actual and
22 necessary expenses incurred in serving.

23 (12) Only the voting members of the strategic advisory board
24 shall develop a strategic plan in accordance with section 9c with
25 advice and collaboration from the nonvoting members as described in
26 this section. The nonvoting members shall elect the voting members
27 under subsection (2)(a) as follows:

28 (a) The nonvoting members described in subsection (2)(b)(i)
29 shall elect 4 members to serve as voting members under subsection



1 (2) (a) (i) .

2 (b) The nonvoting members described in subsection (2) (b) (ii)
3 shall elect 4 members to serve as voting members under subsection
4 (2) (a) (ii) .

5 (c) The nonvoting members described in subsection (2) (b) (iii)
6 shall elect 4 members to serve as voting members under subsection
7 (2) (a) (iii) .

8 (d) The nonvoting members described in subsection (2) (b) (iv)
9 shall elect 4 members to serve as voting members under subsection
10 (2) (a) (iv) .

11 (e) The nonvoting members described in subsection (2) (b) (v)
12 shall elect 4 members to serve as voting members under subsection
13 (2) (a) (v) .

14 (f) The nonvoting members described in subsection (2) (b) (vi)
15 shall elect 4 members to serve as voting members under subsection
16 (2) (a) (vi) .

17 (g) The nonvoting members described in subsection (2) (b) (vii)
18 shall elect 4 members to serve as voting members under subsection
19 (2) (a) (vii) .

20 (h) The nonvoting members described in subsection (2) (b) (viii)
21 shall elect 4 members to serve as voting members under subsection
22 (2) (a) (viii) .

23 (13) In addition, the strategic advisory board may do either
24 of the following:

25 (a) Take any other action necessary to achieve the purposes of
26 section 9c.

27 (b) Perform any other duties or exercise any other powers
28 assigned to the strategic advisory board by law.



1 (14) Once the strategic advisory board develops the strategic
2 plan in accordance with section 9c, the strategic advisory board is
3 dissolved and shall cease operations.

4 Enacting section 1. This amendatory act does not take effect
5 unless Senate Bill No. 213 of the 103rd Legislature is enacted into
6 law.